

For salaries and expenses of district attorneys, United States courts, \$38.67.

For salaries, fees, and expenses of marshals, United States courts, \$40.98.

For fees of clerks, United States courts, 1918, \$31.82.

For fees of clerks, United States courts, 1919, \$39,138.52.

For fees of commissioners, United States courts, \$32.

For fees of commissioners, United States courts, 1918, \$708.65.

For fees of commissioners, United States courts, 1919, \$3,717.20.

For fees of witnesses, United States courts, \$3.30.

For miscellaneous expenses, United States courts, \$364.

For supplies for United States courts, 1918, \$6.17.

CLAIMS ALLOWED BY THE AUDITOR FOR THE POST OFFICE DEPARTMENT.

For railroad transportation, \$7,361.01.

For indemnities, international mail, \$752.31.

For shipment of supplies, \$37.14.

For freight on stamped paper and mail bags, \$25.48.

For vehicle service, \$180.70.

For unusual conditions at post offices, \$147.77.

For equipment, City Delivery Service, \$2.

For special-delivery fees, \$1.28.

For rent, light, and fuel, \$110.63.

For mail-messenger service, \$246.

For compensation to postmasters, \$1,470.98.

For clerks, third-class post offices, \$30.

For clerks, first and second-class post offices, \$756.62.

For balances due foreign countries, \$49.62.

For Railway Mail Service, salaries, \$123.97.

For city-delivery carriers, \$36.67.

For Railway Mail Service, miscellaneous expenses, \$162.82.

For Rural Delivery Service, \$418.89.

For Star Route Service, \$275.91.

For indemnities, domestic mail, registered, \$25.

Total audited claims, section 2, \$999,946.

SEC. 3. That this Act hereafter may be referred to as the "Second Title designated.
Deficiency Appropriation Act, fiscal year 1920."

Approved, March 6, 1920.

CHAP. 95.—An Act Authorizing suits against the United States in admiralty, suits for salvage services, and providing for the release of merchant vessels belonging to the United States from arrest and attachment in foreign jurisdictions, and for other purposes.

March 9, 1920.

[S. 3076.]

[Public, No. 156.]

Be it enacted by the Senate and House of Representatives of the United States of America in Congress assembled, That no vessel owned by the United States or by any corporation in which the United States or its representatives shall own the entire outstanding capital stock or in the possession of the United States or of such corporation or operated by or for the United States or such corporation, and no cargo owned or possessed by the United States or by such corporation, shall hereafter, in view of the provision herein made for a libel in personam, be subject to arrest or seizure by judicial process in the United States or its possessions: *Provided*, That this Act shall not apply to the Panama Railroad Company.

Admiralty causes.
Vessels and cargoes
owned by United
States, etc., exempt
from seizure.

Proviso.
Exception.

SEC. 2. That in cases where if such vessel were privately owned or operated, or if such cargo were privately owned and possessed, a proceeding in admiralty could be maintained at the time of the com-

Libel in personam
authorized against
United States, if mer-
chant vessel or tug.

Venue of action.	menccement of the action herein provided for, a libel in personam may be brought against the United States or against such corporation, as the case may be, provided that such vessel is employed as a merchant vessel or is a tug boat operated by such corporation. Such suits shall be brought in the district court of the United States for the district in which the parties so suing, or any of them, reside or have their principal place of business in the United States, or in which the vessel or cargo charged with liability is found. The libelant shall forthwith serve a copy of his libel on the United States attorney for such district and mail a copy thereof by registered mail to the Attorney General of the United States, and shall file a sworn return of such service and mailing. Such service and mailing shall constitute valid service on the United States and such corporation. In case the United States or such corporation shall file a libel in rem or in personam in any district, a cross-libel in personam may be filed or a set-off claimed against the United States or such corporation with the same force and effect as if the libel had been filed by a private party.
Service, etc.	Upon application of either party the cause may, in the discretion of the court, be transferred to any other district court of the United States.
Admission of cross-libels in actions by United States, etc.	SEC. 3. That such suits shall proceed and shall be heard and determined according to the principles of law and to the rules of practice obtaining in like cases between private parties. A decree against the United States or such corporation may include costs of suit, and when the decree is for a money judgment, interest at the rate of 4 per centum per annum until satisfied, or at any higher rate which shall be stipulated in any contract upon which such decree shall be based. Interest shall run as ordered by the court. Decrees shall be subject to appeal and revision as now provided in other cases of admiralty and maritime jurisdiction. If the libelant so elects in his libel the suit may proceed in accordance with the principles of libels in rem wherever it shall appear that had the vessel or cargo been privately owned and possessed a libel in rem might have been maintained. Election so to proceed shall not preclude the libelant in any proper case from seeking relief in personam in the same suit. Neither the United States nor such corporation shall be required to give any bond or admiralty stipulation on any proceeding brought hereunder. Any such bond or stipulation heretofore given in admiralty causes by the United States, the United States Shipping Board, or the United States Shipping Board Emergency Fleet Corporation, shall become void and be surrendered and canceled upon the filing of a suggestion by the Attorney General or other duly authorized law officer that the United States is interested in such cause, and assumes liability to satisfy any decree included within said bond or stipulation, and thereafter any such decree shall be paid as provided in section 8 of this Act.
Transfer of causes.	SEC. 4. That if a privately owned vessel not in the possession of the United States or of such corporation is arrested or attached upon any cause of action arising or alleged to have arisen from previous possession, ownership, or operation of such vessel by the United States or by such corporation, such vessel shall be released without bond or stipulation therefor upon the suggestion by the United States, through its Attorney General or other duly authorized law officer, that it is interested in such cause, desires such release, and assumes the liability for the satisfaction of any decree obtained by the libelant in such cause, and thereafter such cause shall proceed against the United States in accordance with the provisions of this Act.
Procedure as between private parties.	SEC. 5. That suits as herein authorized may be brought only on causes of action arising since April 6, 1917, provided that suits based on causes of action arising prior to the taking effect of this Act shall
Appeal, etc., allowed.	
Actions as in rem if libelant so elect.	
No bond required.	
Cancellation of former bonds.	
Payment of decree. Post, p. 527.	
Private vessels formerly Government owned.	
Release, etc., if attached for causes arising during such ownership.	
Assumption of liability.	
Time limit for suits.	